

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF VLADIMIR REGIONAL PUBLIC ASSOCIATION OF REFUGEES AND DISPLACED PERSONS 'SODEYSTVIYE' v. RUSSIA

(Application no. 53097/08)

JUDGMENT

STRASBOURG

9 November 2021

This judgment is final but it may be subject to editorial revision.



In the case of Vladimir Regional Public Association of Refugees and Displaced Persons 'Sodeystviye' v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

María Elósegui, *President,*
Darian Pavli,
Frédéric Krenc, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having regard to:

the application (no. 53097/08) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 20 October 2008 by the Russian organisation Vladimir Regional Public Association of Refugees and Displaced Persons "Sodeystviye" ("the applicant organisation") founded on 30 May 1997. It was represented by lawyers of the non-governmental organisation ("NGO") Memorial Human Rights Centre based in Moscow and of the NGO European Human Rights Advocacy Centre at Middlesex University ("the EHRAC") based in London;

the decision to give notice of the application to the Russian Government ("the Government"), represented by Mr M. Galperin, the Representative of the Russian Federation to the European Court of Human Rights, and lately by Mr M. Vinogradov, his successor in that office;

the Russian Government's objection to the examination of the application by a Committee and to the Court's decision to reject it;

the parties' observations;

Having deliberated in private on 12 October 2021,

Delivers the following judgment, which was adopted on that date:

SUBJECT-MATTER OF THE CASE

1. Following unsuccessful request for information in January 2007 and a failed attempt to locate the applicant organisation at the address of its registration in February 2007, the Vladimir Regional Department of the Federal Registration Service of the Ministry of Justice ("the registration authority") filed a claim for dissolution of the applicant organisation alleging that the latter had ceased functioning.

2. The Leninskiy District Court granted the claim by default judgment on 9 April 2007. It was quashed at the request of the applicant organisation on 22 October 2007. During the fresh examination of the case the registration authority amended the claim seeking the applicant organisation be dissolved for "repetitive and gross violations of domestic law", namely the organisation's failure to: (i) submit annual activity reports for the last nine years; (ii) regularly inform the registration authority of the re-election

of the organisation's chairperson; or (iii) inform that authority of the change in the organisation's address.

3. On 4 February 2008 the Vladimir Regional Court examined the case. It focused its analysis on the question as to whether the shortcomings identified by the registration authority amounted to "repetitive" and (or) "gross" violations punishable by the dissolution of the organisation. Having found that the shortcomings constituted both "repetitive" and "gross" violations, the court ordered the dissolution of the applicant organisation.

4. On 22 April 2008 the Supreme Court of Russia upheld the above decision on appeal. It dismissed in a summary fashion the argument by the applicant organisation that the dissolution had not been "necessary in a democratic society" and breached Article 11 of the Convention.

5. Relying on Article 11 of the Convention the applicant organisation claimed that its dissolution was an unlawful and disproportionate sanction for violations of formal requirements of domestic law.

6. Relying on Article 13 of the Convention the applicant organisation claimed that the domestic courts had not thoroughly examined the case.

THE COURT'S ASSESSMENT

I. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. This complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention or inadmissible on any other ground. It must therefore be declared admissible.

8. The general principles concerning the dissolution of an organisation have been summarized in *Tebieti Mühafize Cemiyyeti and Israfilov v. Azerbaijan* (no. 37083/03, §§ 67-68, ECHR 2009); *Adana TAYAD v. Turkey* (no. 59835/10, §§ 27-28, 21 July 2020); and *Croatian Golf Federation v. Croatia* (no. 66994/14, §§ 97-98, 17 December 2020).

9. The applicant organisation's dissolution constituted an interference with its right to freedom of association. The Court is ready to accept that it was a lawful measure aimed at protecting the rights of others (see, *mutatis mutandis, Tebieti Mühafize Cemiyyeti and Israfilov*, cited above, § 66, and *Biblical Centre of the Chuvash Republic v. Russia,* no. 33203/08, § 53, 12 June 2014). It cannot however agree with the Government that the dissolution was "necessary in a democratic society" or that it was justified by the seriousness of the violations which had been committed by the applicant organisation. The violations in question were purely formal and did not relate to the essence of the applicant organisation's activity. It was not shown that the latter acted in bad faith or deliberately concealed the information. The applicant organisation did not receive any requests or reminders from the registration authority for many years from 1997 to 2007. When that authority disclosed that the applicant organisation had failed to

discharge its obligation, it immediately filed an action for dissolution. Neither the registration authority, nor the domestic courts considered the resort to other means which would interfere less seriously with the fundamental freedom concerned (for example, a formal warning, suspension of the organisation's activity, or administrative fine). They did not explain why the legitimate aim pursed by the dissolution could not have been reached otherwise. The courts focused their analysis on the legality of the contested measure without its proportionality having been assessed in a meaningful manner. No sufficient reasons were put forward to justify the dissolution of the organisation which had operated for more than ten years at the time (compare *Biblical Centre of the Chuvash Republic*, cited above, §§ 54-63). There has accordingly been a violation of Article 11 of the Convention.

II. ALLEGED VIOLATION OF ARTICLE 13 OF THE CONVENTION

10. This complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention or inadmissible on any other ground. It must therefore be declared admissible.

11. In the light of the finding that there has been a violation of Article 11 of the Convention and having regard to the reasons underlying this finding, it is not necessary to examine separately the complaint under Article 13 of the Convention.

APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. The applicant organisation claimed 10,000 euros (EUR) in respect of non-pecuniary damage and 1,194,444 Russian roubles in respect of pecuniary damage. It asked the award to be paid to its founding members - Mr V. Madyarov, Ms L. Turdyeva, and Ms N. Lipans jointly. The applicant organisation also claimed EUR 15,831.05 in respect of costs and expenses incurred in the proceedings before the Court to be paid into the EHRAC's bank account.

13. The Government submitted that no award should be made to the founders, because they were not the applicants and because their rights had not been violated. The claim in respect of pecuniary damage was speculative and ill-founded. The costs and expensive claimed by the applicant organisation were excessive. Moreover, it was not demonstrated that the applicant organisation had to pay them.

14. The Court awards the applicant organisation EUR 10,000 in respect of non-pecuniary damage to be paid to Mr V. Madyarov, Ms L. Turdyeva, and Ms N. Lipans jointly, plus any tax that may be chargeable (see *Dicle for the Democratic Party (DEP) of Turkey v. Turkey*, no. 25141/94, § 78, 10 December 2002). On the other hand, it rejects the claim for pecuniary

damage as unfounded. Having regard to the documents in its possession, the Court considers it reasonable to award the applicant organisation EUR 1,000 for costs and expenses to be paid into the bank account of the EHRAC, plus any tax that may be chargeable.

15. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the application admissible;

2. *Holds* that there has been a violation of Article 11 of the Convention;

3. *Holds* that there is no need to examine the complaint under Article 13 of the Convention;

4. *Holds*
   (a) that the respondent State is to pay the applicant organisation, within three months, the following amounts, to be converted into the currency of the respondent State at the rate applicable at the date of settlement:
      (i) EUR 10,000 (ten thousand euros), plus any tax that may be chargeable, in respect of non-pecuniary damage, to be paid to Mr V. Madyarov, Ms L. Turdyeva, and Ms N. Lipans jointly;
      (ii) EUR 1,000 (one thousand euros), plus any tax that may be chargeable, in respect of costs and expenses, to be paid into the bank account of the EHRAC;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

5. *Dismisses* the remainder of the applicant organisation's claim for just satisfaction.

Done in English, and notified in writing on 9 November 2021, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Olga Chernishova	María Elósegui
Deputy Registrar	President